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IN THE COURT OF APPEAL OF THE STATE OF CALIFORNIA
IN AND FOR THE SIXTH APPELLATE DISTRICT

G. MITCHELL KIRK; AND CALIFORNIA RIFLE & PISTOL ASSOCIATION, INCORPORATED,

PLAINTIFFS AND APPELLANTS,

v.

CITY OF MORGAN HILL; MORGAN HILL CHIEF OF POLICE DAVID SWING, IN HIS OFFICIAL CAPACITY; MORGAN HILL CITY CLERK IRMA TORREZ, IN HER OFFICIAL CAPACITY; AND DOES 1-10,

DEFENDANTS AND RESPONDENTS.

Case No. H048745

Court of Appeal Case No. H048745

Superior Court of California, County of Santa Clara
Case No. 19CV346360
Honorable Judge Peter H. Kirwan

APPELLANTS' REPLY BRIEF

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INTRODUCTION

Relying largely on the argument that it is within its authority to enact laws imposing stricter requirements than state law imposes and resisting Appellants' repeated pleas to identify *any* special community need related to its firearm theft-reporting mandate, the City fails at each turn to address Appellants' core arguments for why state law must preempt Morgan Hill Municipal Code (MHMC) section 9.04.030.

First, it fails to address the fundamental reason its theft-reporting mandate duplicates state law requiring the same. That is, it ignores "inevitable conflict of jurisdiction" and the double jeopardy concerns that arise when a local punishes the same act that state law does. Instead, the City would have this Court focus the small differences between its law and the state's. Those differences, however, do not save the City's ordinance from improperly duplicating state law because, in a not insignificant number of cases, enforcement and prosecution under the City's law would bar enforcement of the state's supreme law.

Second, the City fails to appreciate that its attempt to shorten the amount of time one has to report the theft or loss of a firearm *inevitably* conflicts with state law. And it provides no satisfying response to Appellants' oft-repeated concern that enforcement of the City's theft-reporting ordinance obstructs the "accomplishment and execution of the full purposes and objectives of" the supreme state law, (*Fiscal v. City & Cnty. of San Francisco* (2008) 158 Cal.App.4th 895, 911 ("*Fiscal*")), making it "inimical" to state law and thus preempted as contradicting state law. Instead, the City pivots, claiming that it is "possible" to comply with both its law and the state law, so there is no conflict. But this requires a level of notice of the law that many, especially transient citizens, are unlikely to have. What's more, even if it is "possible" to comply with the law, this argument ignores the more fundamental concern that the City's law is "inimical" to state law because it could obstruct the state's power to enforce its laws.

Third, Appellants argue that state law is so comprehensive that it fully occupies the field of firearm-theft reporting and so preempts local regulation in the field. Neither the City's brief nor the trial court's opinion below explain how Prop 63 could have been any more comprehensive. The best they can muster is a claim that if the state had meant to

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preempt local law in this field, it "could easily have simply said it was doing so, as it has done many times before." The argument borders on the frivolous. For if the state must expressly state its intention to preempt, *then there would be no implied field preemption at all.* Further, Prop 63 did exactly as the City suggests in two other gun control provisions unrelated to the theft-reporting law, revealing a strong implied intent *not* to allow local meddling in the field of theft-reporting.

But even if state law does not fully occupy the field to the exclusion of local regulation, it at least partially occupies the field. And the risk of harm to transient citizens outweighs any special benefit the City might dream up (but to this point has not). Indeed, the ordinance uniquely burdens transient citizens because it involves an affirmative duty to act, unlike all the laws the City has cited which involve *prohibitions* on behavior. In response, the City, like the lower court, argues simply that there is no threat to transient citizens because they could just learn the law before they enter Morgan Hill. The argument, if affirmed, would essentially swallow the test. If transient citizens are presumed to know every local law of every jurisdiction they pass through, then it becomes hard to imagine when *any* law could sufficiently adversely affect transient citizens so that this type of implied field preemption would apply.

For these reasons and those analyzed in Appellants' Opening Brief, this Court should reverse.

ARGUMENT

I. THE CITY'S THEFT-REPORTING ORDINANCE IS PREEMPTED BECAUSE IT DUPLICATES STATE LAW; THE TRIVIAL DIFFERENCES THE CITY IDENTIFIES DO NOT DEFEAT THE INEVITABLE CONFLICT OF JURISDICTION THE CITY'S LAW CREATES

Given its focus on trivial differences between MHMC section 9.04.050 and Penal Code sections 25250, (Resps.' Br. ("R.B."), pp. 18-21), the City seems to believe that duplication preemption functions as little more than a sort of legal "cleaning crew"—wiping away redundant ordinances that are identical to state law, so they no longer clog up the local code books. Taken alone without context, one might think that duplication preemption serves just that purpose. Certainly, a local law that differs in no way from state law would be duplicative and thus preempted. But if duplication preemption serves *only* to strike identical

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But, as Appellants' Opening Brief explains, courts have long recognized that duplication preemption serves a far more important purpose—to bar duplicative local laws that raise double jeopardy concerns and thus threaten the ability of the state to enforce its own (supreme) laws. (Appellants' Opening Br. ("A.O.B.") at pp. 17-18, citing *People v. Seel* (2004) 34 Cal.4th 535, 542.)[1] Indeed, "[t]he invalidity arises, not from a conflict of language, but from the *inevitable conflict of jurisdiction* which would result from dual regulations covering the same ground." (*Pipoly v. Benson* (1942) 20 Cal.2d 366, 370 ("*Pipoly*"), italics added; see also *Abbott v. Los Angeles* (1960) 53 Cal.2d 674, 682 ("*Abbott*").) Put another way, "[t]he reason that a conflict . . . is said to exist where an ordinance duplicates state law is that a conviction under the ordinance will operate to bar prosecution under state law for the same offense." (*Cohen v. Bd. of Supervisors* (1985) 40 Cal.3d 277, 292.) So even if an ordinance were intended to cover some purported shortcoming in state law, it is still preempted when it "denounces as criminal precisely the same acts which are attempted to be prohibited by the code." (*In re Sic* (1887) 73 Cal. 142, 146.) In its most likely applications, that is just what MHNC section 9.04.030 does.

Even so, the City makes two basic arguments about why duplication preemption does not apply—what it terms the "temporal" and "spatial" scope arguments. (R.B. at p. 18.) As to the latter, the City argues that "where the Ordinance requires a firearm owner whose firearm is stolen in Morgan Hill or a Morgan Hill resident gun owner to report to Morgan Hill Police when loss or theft of a firearm occurs, state law requires reporting in the jurisdiction where the loss or theft occurred." (*Ibid.*)[2] The City must thus acknowledge then

[1] Respondents claim that Appellants did not raise the double jeopardy argument below. (R.B. at p. 19.) That is verifiably false. Appellants argued the point both in their lower court briefing *and* expressly at oral argument. (A.A.XI 2723-2724, 2797-2799.) Respondents' counsel even responded to Appellants' double jeopardy arguments at the hearing on the parties' cross-motions for summary judgment. (A.A.XI 2806-2807.)

[2] Not that Morgan Hill would have any authority to require them to report to any

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that two laws requiring residents and non-residents to report a firearm lost or stolen in Morgan Hill to Morgan Hill authorities regulates, "spatially," the very same conduct. So too, in the likely most common scenario to which the ordinance would apply, MHMC section 09.04.030 punishes the Morgan Hill resident who loses their firearm in the City but fails to report it at all. If the City prosecuted that resident under its reporting mandate, double jeopardy would plainly prevent the state from doing the same.

The City also makes much of the "temporal" difference between MHMC section 9.04.030 and Penal Code section 25250, arguing that the three-day difference in reporting time between the two saves its ordinance. The argument can be dispensed with in much the same way the City's "spatial" argument can be. Because duplication preemption is more concerned with whether the local law regulates the same conduct as state law and less with any minute differences the local government might add. And, again, in the most likely of scenarios, MHMC section 9.04.030, even with its "temporal" difference, regulates the very same conduct state law regulates. State law thus preempts the City's ordinance.

Still, the City fights this result, leaning heavily on a series of cases in which California courts upheld local laws that, while very similar to their state-law counterparts, included additional requirements supplementing state law regulation. (R.B. at p. 20, citing *Am. Fin. Servs. Assn. v. City of Oakland* (2003) 111 Cal.App.4th 1435 ("*Am. Fin. Servs.*"); *Great W. Shows v. Cnty. of Los Angeles* (2002) 27 Cal.4th 853 ("*Great Western*"); *Suter v. City of Lafayette* (1997) 57 Cal.App.4th 1109 ("*Suter*"); *Pipoly v. Benson* (1942) 20 Cal.2d 366 ("*Pipoly*"); *In re Iverson* (1926) 199 Cal. 582 ("*Iverson*"); *In re Hoffman* (1909) 155 Cal. 114 ("*Hoffman*").) Most of the cases the City cites, however, deal with laws regulating sophisticated businesses, not individuals. (*Am. Fin. Servs., supra*, 111 Cal.App.4th at p. 1441 [restricting sub-prime consumer loans secured by Oakland real property]; *Great Western*, *supra*, 27 Cal.4th at p. 865 [banning gun shows on county property]; *Suter*, *supra*, 57 Cal.App.4th at p. 1123 [imposing firearm storage

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[2] Not that Morgan Hill would have any authority to require them to report to any other police department outside city limits anyway. Interestingly, this fact illustrates well why these "spatial" differences between state and local law cannot be enough to save otherwise duplicative local laws. Because no local jurisdiction has the authority to regulate conduct outside its borders, only local laws differ "spatially" from state law. Under the City's logic, then, duplication preemption would have little or no practical application.

[3] Even if *Great Western* were not distinguishable because the local law regulated

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requirements on firearms retailers beyond what state law required); *Iverson*, *supra*, 199 Cal. at p. 586 [restricting the amount of alcohol pharmacies could dispense]; *Hoffman*, *supra*, 155 Cal. at p. 118 [limiting the maximum percentage milk may be adulterated].) And not one involved a law placing an affirmative duty on laypeople to act. The laws at issue were instead aimed at prohibiting some conduct. These distinctions are critical because, as Appellants will establish, the standard applied to laws regulating the behavior of individuals differs greatly from that applied to prohibitory enactments and laws regulating businesses.

In fact, only one of the City's cited authorities, *Pipoly*, *supra*, 20 Cal.2d 366, dealt with a local law regulating the conduct of laypeople. (R.B. at p. 20, citing *Pipoly*, *supra*, 20 Cal.2d at p. 485 [sic].) And that case *struck* the local traffic law at issue. (*Pipoly*, *supra*, at pp. 372, 375.) To be sure, the *Pipoly* Court acknowledged the well-established rule that the City relies on here—that "local regulations in the form of additional reasonable requirements not in conflict with the provisions of the general law" are permissible. (*Id.* at p. 370.) But the *Pipoly* Court *also* recognized the equally well-established exception to that rule:

> This general rule permitting the adoption of additional local regulations supplementary to the state statutes is subject to an exception, however, which is important in the present case. Regardless of whether there is any actual grammatical conflict between an ordinance and a statute, the ordinance is invalid if it attempts to impose additional requirements in a field which is fully occupied by the statute.[4] *Thus, it has been held from an early date that an ordinance which is substantially identical with a state statute is invalid because it is an attempt to duplicate the prohibition of the statute.*

(*Id.* at p. 371, italics added.) That exception, *Pipoly* observed, has been applied not just to cases in which the state and local laws are identical (and thus clearly occupying the very same field), but also to cases in which it is less clear that the legislature intended to preempt local

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business instead of individual conduct, it does not provide much support for the City's duplication argument. Because, there, the court noted the *substantial* differences between the relevant state and county laws, the former prohibiting the sale of certain firearms generally, and the latter prohibiting sales of all firearms specifically on county-owned property. (*Great Western*, *supra*, 27 Cal.4th at p. 865.) More importantly, the relevant state law in *Great Western* expressly contemplated further local regulation of the industry. (*Id.* at p. 865.)

[4] Appellants establish in their Opening Brief, (see A.O.B. at pp. 25-28), and again below, (see Part III, *infra*), that state law has indeed "fully occupied" the field of firearm theft- and loss-reporting. This reference to "implied field preemption" is made here in Appellants' discussion of "duplicative" preemption, however, because the *Pipoly* Court (like many courts addressing state-law preemption at the time) did not so clearly delineate between the various implied preemption analyses.

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regulation. (*Ibid.*)

But even if the general rule (and not the exception) controls here, *Pipoly* suggests that the City's theft-reporting ordinance cannot be saved simply because, in other cases, local laws imposing additional requirements supplemental to state law have been upheld. That is because the general rule requires that local laws not be in "conflict" with state law. (*Pipoly*, *supra*, 20 Cal.2d at p. 370.) The City contends that its theft-reporting ordinance does not "conflict" with the state's similar requirement because it is "possible" to comply with both. (R.B. at p. 22.) And perhaps under a dictionary definition of "conflict," the City might be right. For purposes of preemption, however, the courts have long recognized a much broader definition of the term. Again,

> The invalidity arises, not from a conflict of language, but from *the inevitable conflict of jurisdiction* which would result from dual regulations covering the same ground. *Only by such a broad definition of 'conflict' is it possible to confine local legislation to its proper field of supplementary regulation.*

(*Pipoly*, *supra*, 20 Cal.2d at p. 370, italics added; see also *Abbott*, *supra*, 53 Cal.2d at p. 682 ["[T]he term 'conflict' as used in section 11 of article XI has been held not to be limited to a mere conflict in language, but applies equally to a conflict of jurisdiction."]; *San Francisco v. Boss* (1948) 83 Cal.App.2d 445, 452.) As explained above, MHMC section 9.04.030 creates an "inevitable conflict of jurisdiction" with state law when no report is made within in five days, likely the most common scenario. Again, that is because prosecution by the City for this violation of its ordinance would bar the subsequent prosecution by the state for the violation of Penal Code section 25250.

The City's brief also refers to several cases "collected" by the *Pipoly* Court. (R.B. at p. 20, citing *Pipoly*, *supra*, 20 Cal.2d at p. 370 [cited by the City as 20 Cal. 2d 366, *485*, which appears to be a mistaken citation to the pin cite page in the Pacific Reporter], citing *In re Sic*, *supra*, 73 Cal. at p. 144 and *In re Application of Ah Jongo* (1923) 190 Cal. 769, 771.) These cases support Appellants' position for the same reason *Pipoly* does. *In re Sic* examined the differences between a state law that prohibited operating an opium den and a local ordinance that prohibited "two or more persons to assemble, be, or remain in any room or place for the purpose of smoking opium or inhaling the fumes thereof." (*In re Sic*, *supra*, 73 Cal. at p.

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> The invalidity arises, not from a conflict of language, but from *the inevitable conflict of jurisdiction* which would result from dual regulations covering the same ground. *Only by such a broad definition of 'conflict' is it possible to confine local legislation to its proper field of supplementary regulation.*

(*Pipoly*, *supra*, 20 Cal.2d at p. 370, italics added; see also *Abbott*, *supra*, 53 Cal.2d at p. 682 ["[T]he term 'conflict' as used in section 11 of article XI has been held not to be limited to a mere conflict in language, but applies equally to a conflict of jurisdiction."]; *San Francisco v. Boss* (1948) 83 Cal.App.2d 445, 452.) As explained above, MHMC section 9.04.030 creates an "inevitable conflict of jurisdiction" with state law when no report is made within in five days, likely the most common scenario. Again, that is because prosecution by the City for this violation of its ordinance would bar the subsequent prosecution by the state for the violation of Penal Code section 25250.

But even if the general rule (and not the exception) controls here, *Pipoly* suggests that the City's theft-reporting ordinance cannot be saved simply because, in other cases, local laws imposing additional requirements supplemental to state law have been upheld. That is because the general rule requires that local laws not be in "conflict" with state law. (*Pipoly*, *supra*, 20 Cal.2d at p. 370.) The City contends that its theft-reporting ordinance does not "conflict" with the state's similar requirement because it is "possible" to comply with both. (R.B. at p. 22.) And perhaps under a dictionary definition of "conflict," the City might be right. For purposes of preemption, however, the courts have long recognized a much broader definition of the term. Again,

CONCLUSION

For these reasons, as well as those discussed in their opening brief, Appellants ask this Court to hold that MHMC section 9.04.030 is preempted by state law, reverse the trial court's order granting the City's motion for summary judgment, and vacate the entry of judgment for the City.

Dated: February 14, 2022

MICHEL & ASSOCIATES, P.C.

s/Anna M. Barvir

Anna M. Barvir

Attorneys for Plaintiffs-Appellants

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CERTIFICATE OF WORD COUNT

CERTIFICATE OF WORD COUNT

Under Rule 8.204, subdivision (c)(1), of the California Rules of Court, I certify that the attached Appellants' Reply Brief is 1½-spaced, typed in a proportionally spaced, 13-point font, and the brief contains 10,532 words of text, including footnotes, as counted by the word-count feature of the word-processing program used to prepare the brief.

Under Rule 8.204, subdivision (c)(1), of the California Rules of Court, I certify that the attached *APPELLANTS' REPLY BRIEF* is 1½-spaced, typed in a proportionally spaced, 13-point font, and the brief contains 2,614 words of text, including footnotes, as counted by the word-count feature of the word-processing program used to prepare the brief.

Dated: February 14, 2022

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s/Anna M. Barvir

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PROOF OF SERVICE

Case Name: *Kirk, et al. v. City of Morgan Hill, et al.*
Court of Appeal Case No.: H048745
Superior Court Case No.: 19CV346360

I, Laura Palmerin, am employed in the City of Long Beach, Los Angeles County, California. I am over the age eighteen (18) years and am not a party to the within action. My business address is 180 East Ocean Boulevard, Long Beach, California 90802.

On February 14, 2022, I served a copy of the foregoing document described as: **APPELLANTS' REPLY BRIEF**, on the following parties, as follows:

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These parties were served as follows: I served a true and correct copy by electronic transmission through TrueFiling. Said transmission was reported and completed without error.

Esther Sanchez-Gomez
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Served by electronic transmission through TrueFiling.

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This party was served by mail. I am readily familiar with the firm's practice of collection and processing correspondence for mailing. Under the practice it would be deposited with the U.S. Postal Service on that same day with postage thereon fully prepaid at Long Beach, California, in the ordinary course of business. I am aware that on motion of the party served, service is presumed invalid if postal cancellation date is more than one day after date of deposit for mailing an affidavit.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on February 14, 2022, at Long Beach, California.

Laura Palmerin
Declarant

Laura Palmerin
Declarant

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